

STANDING ORDER No. Ops.-15

(Previous Standing Order No. 102/2009)

FUNCTIONING OF THE PUBLIC GRIEVANCES CELL

1. GENERAL

In order to prevent violation of human rights, enquire into the allegations of its violations and keeping check on corrupt practices, gross misconduct and to look into other complaints by a Delhi Policeman a Public Grievances Cell, henceforth to be called as PG Cell, headed by an ACP, has been set up in each Delhi Police Distt.. P.G. Cell will also impart training to sensitize the force to honor human rights and adopt good practices in their day-to-day working, This Cell shall especially deal with the complaints filed by the public with the DCP or to the Cell and pay special attention to the allegations of corruption, gross misconduct and custodial crime of every description.

2. LOCATION

As far as possible the ACP, Public Grievances Cell shall be accommodated in the office complex of the District DCP. A prominent board may be put up outside the office to inform the public about it.

3. STAFFING

District, DCsP will ensure sufficient staff for PG Cell and provide all essential facility for its smooth functioning. The selection of staff for PG Cell should be done after careful perusal of their service record. The ACP I/C Cell shall also supervise the functions of Complaints Branch, Punishment Branch and the Accident Victims Compensation Cell of the District, DCP office shall also function under his supervision.

4. FUNCTIONS

Following shall be the important duties of the ACP/PG Cell:

- (i) To monitor all the complainants coming to the office of the DCP or to the Cell with their grievances.
- (ii) To conduct enquiries into complaints where prima facie evidence of corruption, violation of human rights and gross misconduct on the part of the subordinate officers causing harassment to public are found and submit a report to the DCP.
- (iii) To monitor the follow-up action on these enquiry reports.
- (iv) To conduct traps and sting operations and trap corrupt officers.
- (v) To also monitor the complaints received in the police stations.
- (vi) To ensure timely replies/reports upon complaints in which reports are called for by the PHQ and Vigilance Branch.
- (vii) To monitor the progress of all enquiries in which departmental action is recommended by them.

- (viii) To monitor the compliance of all Standing Orders/Circular Orders issued on the subjects relating to dealing with public such as Human Rights, making of arrests, treatment of arrested persons, summoning of women to police stations, arrest of women, and to the family of accident victims, etc. and other facilities given to the persons in police custody.
- (ix) To hold regular meetings with subordinate officers and men at public stations to educate them on civil liberties, human rights, rights of arrested persons and check their awareness of various orders issued by PHQ on the subject from time to time.
- (x) To conduct surprise checks at police stations to assess the level of compliance of such Standing and Circular Orders and give a checking report to the District DCP.
- (xi) To ensure that the next of kin of victims of fatal accidents are given copies of documents required for filing claims, within one month of registration of the case.
- (xii) Any other duty assigned from time to time by senior officers and PHQ.
- (xiii) To maintain data and ensure timely reply and follow-up action on the various complaints received from various agencies and commissions.

5. ANALYSIS OF DATA REGARDING COMPLAINTS

The Cell shall categorize all the complaints received in the district under the following heads and maintain complaints data category wise.

1. Non-registration of case.
2. Minimization of crime.
3. Harassment in police station.
4. Improper behaviour by police.
5. Extortion of money/bribe.
6. Inaction on the part of local police.
7. Improper investigation.
8. Custodial violence.
9. Other allegations.

The Cell shall also analyze the above data public station-wise and suggest to the District DCP remedial measures if complaints under any particular head are abnormally high in the area of any particular police station. Such data, police station-wise, shall also be sent to the office of DCP/Vigilance in every quarter in the proforma, given at Annexure-A.

6. PUNISHMENTS

The Cell shall maintain data regarding departmental action taken/ punishment awarded to police personnel following enquiries conducted by the Cell and following enquiries by the Vigilance Branch. They shall send quarterly returns thereof to DCP/Vigilance.

7. SUSPENSION/INVOLVEMENT OF POLICEMEN IN CRIMINAL CASES

The Cell shall maintain rank-wise data of policemen placed under suspension in the districts separately for suspensions following enquiries by the Cell, following enquiries by a Vigilance Branch of the PHQ, following involvement in criminal cases and for departmental irregularities and send quarterly reports to DCP/Vigilance in the proforma given at Annexure C. Quarterly data regarding policemen involved in criminal cases but not suspended shall be sent on proforma given at Annexure D.

8. POLICEMEN ON D I LIST

The Cell shall also maintain with it a running list, rank-wise of policemen whose names are brought on the DI List and maintain a special watch on their conduct. If any complaint is received against any police officers, whose name is already on the D I List, the fact shall be brought to the notice of the District DCsP and DCP/Vigilance and a thorough enquiry shall invariably be conducted into all such complaints. A report on the results of such enquiry and action taken shall be sent to DCP/Vigilance within 30 days of received of such complaints.

9. CELL IN OTHER UNITS

Units like Traffic, EOW, IGI Airport, PCR, Crime & Rlys, CAW Cell which have public dealings and police stations functioning under them, shall have a Public Grievances Cell under the charge of an ACP which shall perform all the functions listed in the Standing Order. The cells in Traffic Unit in particular needs to be extremely vigilant and proactive in laying traps and conducting sting operations as a few complainants could be heard. The same is also relevant for the PCR where also there are complaints of extortion/corruption, albeit at a very modest scale.

10. MONITORING BY VIGILANCE BRANCH

Apart from receiving/quarterly returns on complaints/ punishments/ suspension/involvement etc. of public personnel in criminal cases, from the Cells, DCP/Vigilance shall also hold quarterly meetings of the ACsP of the Cells to review the functioning of these Cells and issue guidelines on their functioning from time to time. A proper compliance reports on the points discussed in such meeting shall be putup to Addl. CP/Vigilance, Spl. CP/Vigilance and CP, Delhi.

DCP/Vigilance should also prepare District/Unit-wise compilation of data regarding complaints, enquiries and punishments and submit it to CP through Spl. CP/Vigilance and Addl. CP/Vigilance highlighting the trend that may arrange during such analysis.

This standing order supersedes S.O. No.290 previously issued vide No.3160332003/Human Rights Cell/Vigilance dated 29.11.2004. This Standing Order has been issued vide powers vested under section 19, of the Delhi Police Act, 1978.



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

O.B. NO.27/RB/PHQ Dated 23.03.2009

No. 4451-4600 /Record Branch/PHQ dated Delhi, the 23/03 /2009

ANNEXURE-A

S. No.	Name of the police station	Total complaints	Non-registration of cases	Custodial irregularities	Beating	Extortion of bribe	Improper investigation	Others
1.								
2.								
3.								
4.								
5.								
6.								
7.								
8.								
9.								
10.								
11.								
12.								

ANNEXURE -B**PART -I****Departmental punishment on the basis of enquires by Public Grievances Cell**

Rank	Dismissal/ removal	Termination	Forfeiture of service	Reduction in rank	Reduction in pay	With- holding of incr- ement	Others
Inspr.							
Sub- Insp							
ASI							
H. C.							
Const.							
Class- IV							

PART -II**Departmental punishment on the basis of enquires by Vigilance Branch.**

Rank	Dismissal/ removal	Termination	Forfeiture of service	Reduction in rank	Reduction in pay	With- holding of incr- ement	Others
Inspr.							
Sub- Insp							
ASI							
H. C.							
Const.							
Class- IV							

ANNEXURE-C

SI No.	Suspension	Inspr.	Sub Insp.	ASIs	HCs	Consts.	Class-IV
1.	Suspension after enquires by P.G. Cell						
2.	Suspension after enquires by vigilance branch						
3.	Suspension for involvement in criminal cases						
4.	Suspension for other misconduct						

ANNEXURE - D

STATEMENT OF POLICE OFFICERS INVOLVED IN CRIMINAL CASES AND NOT PLACED UNDER SUSPENSION

IN THE YEAR

IN DELHI POLICE

[illegible]